

Letter of Closure

(Article 17, Ombudsman Act (Cap. 385))

Thank you for reaching out of to this Office with your complaint of the 15th September 2026 and your subsequent email of the 16th September 2026.

I should point out at the outset that the function of the Ombudsman is circumscribed by the provisions of Article 22(1) and (2) of Cap. 385 and, in my case (as Commissioner for Education) by Rule 18 of the Commissioners for Administrative Investigations (Functions) Rules 2012 (today S.L. 385.01). In particular, it is not the function of this Office to substitute its decision for an administrative decision lawfully taken by an administrative authority. If such a decision by an administrative authority is tainted in any way as described in subarticle (1) or (2) of Article 22 aforementioned, the Office of the Ombudsman may make recommendations to rectify the instance of maladministration and/or to prevent future similar instances.

I have carefully examined all the correspondence between you and the Exemptions Board at MES, as well as other internal correspondence between the said Board and Residency Malta Agency and, while undoubtedly the Board could have clarified the position relative to your application for exemption better and possibly supplied more information, in substance your request for fees exemption relative to your son was handled correctly, both procedurally and substantively. In other words, everything was done rite et recte. The fact that you refuse to accept a decision taken pursuant to an established policy does not attract upon that decision any issue of maladministration within the meaning and for the purposes of Article 22(1) and/or (2) already referred to.

You fall under the Malta Residence and Visa Programme (MRVP). The Frequently Asked Questions in connection with this programme (I attach a copy for ease of reference) clearly state in Question 70 (on page 20) that exemption from fees may apply only to primary and secondary education – and the Junior College of the University of Malta falls within the post-secondary (that is tertiary) sector. The Minister's discretion to exempt from fees emanates from subarticle (2) of Article 67 of the Education Act (Cap. 605) and from Regulation 7 of the Fees (Tuition) Regulations 1975 (today S.L. 605.01). The Board of Exemption of Fees at State Education Institutions assists the Minister in coming to his/her decision by making a recommendation to him or her. I am also attaching for your perusal the current Policy and Rules of Procedure of the said Board, as revised in 2023. Please see in particular Rule 4.6(e), where it is also clearly stated that tertiary (i.e. post-secondary education) is not exempted, whether under MRVA or MPRR (the programme applicable in your case – MRVP – is here referred to by reference to the Agency administering it, that is MRVA).

The fact that these Rules do not provide for a reconsideration of the Board's recommendation to the Minister does not, per se, run afoul of Article 22(1)(2) of Cap. 385.

I trust that the above clarifies all matters, both substantive and procedural. In the circumstances and for the above reasons your complaint cannot be entertained and is therefore dismissed (not sustained). No further correspondence on this case shall be entertained by this Office. In order to preserve confidentiality, this letter of closure is being sent only to you. The respondent entity – the Office of the Permanent Secretary at the Ministry responsible for Education – will only be informed that the case is no longer being investigated pursuant to Article 17 of the Ombudsman Act.